

Advertising and Solicitation Rules in Michigan

Advertising can take many forms: printed, spoken, online, recordings, radio, TV, or text messaging. It may be specific to a property, an attempt to solicit new business, or a real estate firm's attempt to attract new licensees. If you are advertising real estate services by any means or for any purpose, it is a real estate activity that falls under the requirements of Michigan's Occupational Code Act 299 General Rules. Some of the requirements include:

- All brokers and salespersons must advertise under the supervision and in the name of the employing broker, and must include either the broker's telephone number or address. Groups or teams affiliated with the same broker may also place advertisements.
 - The broker's name must be in a font size of equal or greater size than the individual licensee's or team name.
- Brokers can't conduct business or advertise under a name that differs from what's on their broker license. If a broker adopts an assumed name, the broker needs to notify the department of the name on the license application or within 30 days of name adoption, whichever is earliest.
- If a licensee is representing a seller under a service provision agreement, the licensee can't advertise that property as being "For Sale by Owner." This is misleading and gives the public the perception that the seller isn't represented by a real estate licensee.
- A licensee may advertise property in his or her own name for sale or lease, provided they identify themselves as a licensed broker or salesperson in all advertisements.